

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable Thomas DeSantos
Judge of the Superior Court
County of Kings
1640 Kings County Drive
Hanford, CA 93230

Re: Zavala, Jesus
CDC No.: F83774
Case No.: 07CM0126
Date of Sentence: 07/26/2007

Dear Honorable Thomas DeSantos:

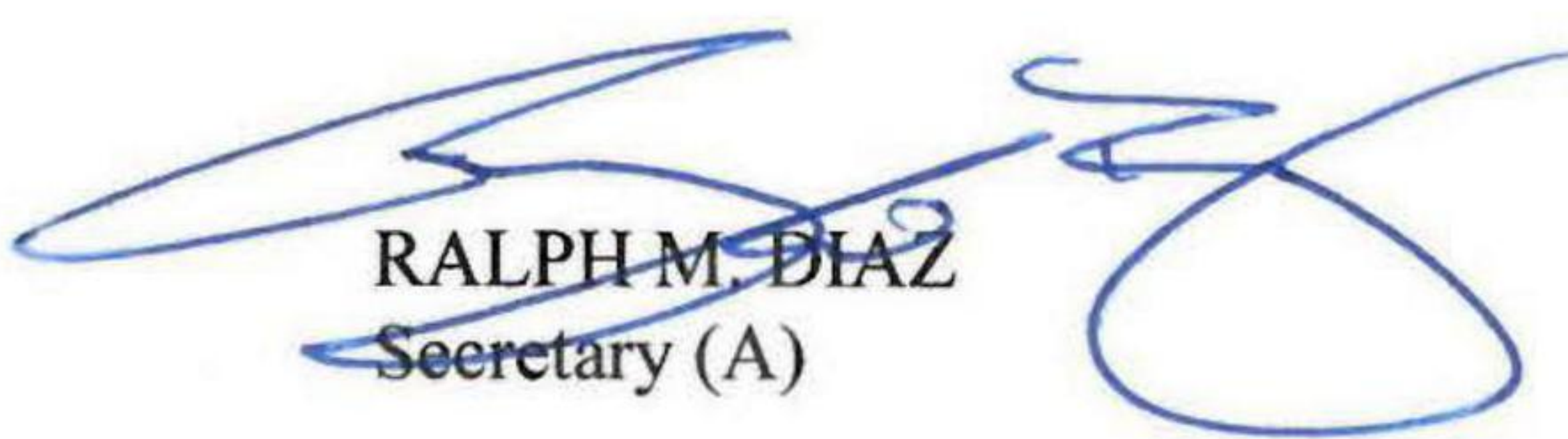
The purpose of this letter is to provide the court with authority to resentence Jesus Zavala pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Zavala was sentenced in 2007, and was convicted of section 245, subdivision (a)(2), ASSAULT DEADLY WEAPON TO WIT A FIREARM. The trial court sentenced inmate Zavala on 07/26/2007. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Zavala's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Zavala's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Donna L. Tarter, Kings County Presiding Judge
Kings District Attorney
Public Defender

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

E83774
 83774

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: KINGS			FILED AUG 01 2007 TODD H. BARTON, CLERK EXECUTIVE OFFICER SUPERIOR COURT OF THE STATE OF CALIFORNIA COUNTY OF KINGS DEPUTY ROSIE S. SALAS			
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: JESUS ZAVALA		DOB: 10-22-87				07CM0126 -A
AKA:						06CM1929 -B
CII NO.: A25353298		NOT PRESENT				
BOOKING NO.: A) 00274355 B) 00268554						
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT			☐ AMENDED ABSTRACT			
DATE OF HEARING 07-26-07		DEPT. NO. 06		JUDGE THOMAS DESANTOS		
CLERK ROSIE S. SALAS		REPORTER HEIDI R. BENAVIDES		PROBATION NO. OR PROBATION OFFICER KELLY M. ZUNIGA		
COUNSEL FOR PEOPLE ADAM NELSON, DDA			COUNSEL FOR DEFENDANT MELINA BENNINGHOFF			

1. Defendant was convicted of the commission of the following felonies:
☐ Additional counts are listed on attachment
 (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (Yrs to term)	\$54 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
3A	PC	245(a)(2)	ASSAULT DEADLY WEAPON TO WIT A FIREARM	2007	06-28-07			X	M							6	0
4A	HS	11378	POSSESS SALE TO WIT METHAMPHETAMINE	2007	06-28-07			X	M			X				1	4
1B	PC	245(a)(1)	ASSAULT DEADLY WEAPON TO WIT A BOTTLE	2006	11-08-06			X	M	X						(3)	(0)

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
3A	186.22(b)(1)	10 YRS					10 0
3A	12022.7(a)	3 YRS					3 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☒ Deft. sentenced per: ☒ PC 667(b)-(l) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 20 4

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: JESUS ZAVALA			
07CM0126	-A	06CM1929	-B
			-C
			-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$4000.00 per PC 1202.4(b) forthwith per PC 2085.5; \$4000.00 per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Case B: \$200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$200.00 per PC 1202.45 suspended unless parole is revoked.
\$200.00 per PC 1202.44 is now due, probation having been revoked.

Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$RESERVED ☒ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 11, below. ☐ * Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutiv
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offenses

Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutiv
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offenses

Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutiv
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offenses

Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutiv
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offenses

d. Court Security Fee: \$60.00 per PC 1465.8.

10. TESTING a. ☐ Compliance with PC 296 verified b. ☒ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify):

11. Other orders (specify):

1B -PURSUANT TO 1465.8 PC SECURITY FEE DEFENDANT CREDITED .41 CENTS; PURSUANT TO 1202.4(b)PC RESTITUTION DEFENDANT CREDITED \$4.20; BALANCE OF ALL FINES AND FEES CONVERTED TO CIVIL JUDGMENT.

12. IMMEDIATE SENTENCE:

14. CREDIT FOR TIME SERVED

☐ Probation to prepare and submit

Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin:

13. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing. 3 & 4A
b. ☐ at resentencing per decision on appeal.
c. ☒ after revocation of probation. 1B
d. ☐ at resentencing per recall of commitment. (PC1170(d).)
e. ☐ other (specify):

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	221	193	28 ☐ 4019 ☒ 2933.1
B	319	213	106 ☐ 4019 ☒ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
07-26-07		DMH	CDCR CRC

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☐ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☒ other (specify): WASCO STATE PRISON

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE
ROSIE S. SALAS

DATE

08-01-07